

Radhey Shyam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 May 2023 · Writ-C No. 14526 of 2023 · **No interference; final assessment to follow Supply Code procedure**

HEADNOTE

The High Court declined to interfere, at this stage, with a notice of provisional assessment under the Electricity Act, 2003 after the consumer had already filed his objection. The writ was disposed of with a direction that the Electricity Department conclude the proceedings by a final assessment passed strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. Restoration of supply was not ordered.

FACTUAL SUMMARY

Radhey Shyam filed a writ against the State of U.P. and the electricity authorities challenging a notice of provisional assessment dated 12 January 2023 issued under the Electricity Act, 2003, and sought restoration of his electricity supply. The notice allowed fifteen days to file an objection. He had already filed that objection on 30 March 2023, before the High Court took up the petition.

HOLDING-UNITS

INTERPLAY · Electricity Supply Code, 2005

final assessment after a provisional assessment notice

HOLDING

No case was made out to interfere at this stage with the notice of provisional assessment dated 12 January 2023 issued under the Electricity Act, 2003. The petition was disposed of with a direction that the Electricity Department conclude the proceedings by passing a final assessment strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

FLAG The order cites the Electricity Act, 2003 and the Electricity Supply Code, 2005 without a section or clause number.

PRINCIPLE TAGS

final-assessment-strictly-per-prescribed-code-procedure Where objection to a provisional-assessment notice is already pending, the High Court will not interfere with that notice and will leave the Electricity Department to pass the final assessment strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT DATED 12 JANUARY 2023 AND OF THE OBJECTION FILED ON 30 MARCH 2023

Left to the Electricity Department to conclude by a final assessment under the Supply Code procedure. ¶ 1

NOT DECIDED — RESTORATION OF ELECTRICITY SUPPLY

Sought in the writ, but no direction to restore supply was issued. ¶ 1